

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

CLAY MONTGOMERY,

Petitioner

VS.

CAITLIN MONTGOMERY,

Respondent

) Case Number: FDI-24-799969

) Hearing Date: July 23, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REVIEW OF CUSTODY AND VISITATION; CHILD SUPPORT ISSUE(S)

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

I. Custody and Visitation

- 1) The custody and parenting time hearing is continued to **7/30/2026 at 9AM in Department 404** due to the Child Protective Services investigation. The parties shall check the Court's tentative ruling at 2PM on 7/29/2026.

II. Child Support

A. Procedural History

- 1) On 4/29/2025, Father filed a Request for Order seeking, among other orders requested, a guideline child support order.
- 2) On 4/15/2025, Father filed an Income and Expense Declaration stating he earns an average monthly salary of \$3,517, receives \$167 in monthly pension/retirement funds, receives \$465 per

1 month in military allowance, pays \$30 in monthly health insurance premiums, has \$19,773 in
2 cash assets, pays \$1,487 in average monthly expenses, and pays \$382 in additional childcare
3 expenses for work.

4 3) On 6/10/2025, Mother filed a Responsive Declaration agreeing to pay guideline child support.
5 Mother states she began working in February and, beginning in April, she began sending
6 “monthly payments,” toys, books, and clothes for Sophia.

7 4) At the prior 7/22/2025 hearing (per the Findings and Order After Hearing filed 7/31/2025), the
8 Court found it did not have sufficient information to adjudicate child support as Mother has not
9 filed an Income and Expense Declaration and neither party had filed Statements of Support
10 Calculation and continued the hearing to 9/4/2025.

11 5) At the prior 9/4/2025 hearing (per the Findings and Order After Hearing filed 9/16/2025), the
12 Court set a review hearing on 1/13/2026 and ordered the parties to file and serve update
13 declarations including information on their location, job status, and housing situation as well as
14 updated Income and Expense Declarations.

15 6) On 12/8/2025, Mother filed an Income and Expense Declaration stating she was unemployed due
16 to “corporate layoffs.” On 12/18/2025, Father filed an Income and Expense Declaration stating
17 that his prior employment ended on 8/3/2025 due to “end of contract.”

18 7) On 6/2/2026, Mother filed an Income and Expense Declaration stating that she began working as
19 a shop associate for Bar Antz LLC in September 2025. Mother states that she works 16 hours per
20 week and earns \$20 per hour, which averages approximately \$1,400 per month. Mother also
21 states that she pays \$1,200 per month in expenses.

22 8) On 6/12/2026, Father filed an Income and Expense Declaration stating that he continues to be
23 unemployed and does not earn any income. Father states that he has \$800 per month in expenses
24 which are paid by others (his parents). Father attached a declaration to his Income and Expense
25 Declaration which states, “Respondent previously earned at a level of \$111,000 annually during
26 her employment in the cybersecurity field... from April-August 2025.” Father also notes that
27 Mother’s prior Income and Expense Declaration disclosed \$3,000 in cash savings while her June
28 2026 Income and Expense Declaration disclosed \$30,000 in cash savings. Father writes that these
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1 discrepancies raise legitimate questions regarding the accuracy and completeness of Mother's
2 disclosures.

- 3 9) The Court has also been informed that both parties are currently students at universities and are
4 hoping to obtain additional education and degrees to obtain higher earning potential.

5 **B. Findings and Order**

- 6 1) According to the XSpouse calculation attached hereto and incorporated herein, the Court finds
7 that guideline child support would amount to \$229 per month, payable by Mother to Father.
8 However, if the Court were to make that order, Mother would only have \$1,040 in net spendable
9 income, which would not be sufficient for Mother to live on. In light of this, and the fact that
10 Father is currently fully financially supported by his parents, the Court finds good cause to set
11 child support at \$0.
12 2) Neither party has offered evidence regarding the other party's current ability or opportunity to
13 earn income and so the Court will not impute income to either party at this time.

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15 **III. Preparation of Order**

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17 1) The Court will prepare the Findings and Order After Hearing.
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Fixed Shares	Father	Mother	Monthly figures	Cash Flow	Guideline	Proposed
#of children	1	0	2026			
% time with NCP	0.00 %	0.00 %				
Filing status	HH/MLA	<-MFS	GUIDELINE	Comb. net spendable	1269	1416
# exemptions	2 *	1 *	Nets(adjusted)	Percent change	0%	12%
Wages+salary	0	1400	Father	Father		
Self-employed income	0	0	Mother	Payment cost/benefit	229	258
Other taxable income	0	0	Total	Net spendable income	229	258
TANF+CS received	0	0	Support	Change from guideline	0	29
Other nontaxable income	0	0	Addons	% of combined spendable	18%	18%
New spouse income	0	0	Guideln CS	% of saving over guideline	0%	20%
401(k) employee contrib	0	0	S.Clara SS	Total taxes	0	0
Adjustments to income	0	0	Total	Dep. exemption value	0	0
SS paid prev marriage	0	0	CS range: 99-229	# withholding allowances	0	0
CS paid prev marriage	0	0	Settings changed	Net wage paycheck	0	0
Health insurance	0	0		Mother		
Other medical expense	0	0		Payment cost/benefit	-229	-110
Property tax expense	0	0		Net spendable income	1040	1158
Ded interest expense	0	0	Proposed	Change from guideline	0	118
Charitable contributions	0	0	Tactic 9	% of combined spendable	82%	82%
Misc tax deductions	0	0	CS	% of saving over guideline	0%	80%
Qual bus income ded	0	0	SS	Total taxes	131	-16
Required union dues	0	0	Total	Dep. exemption value	0	0
Mandatory retirement	0	0		# withholding allowances	0	0
Hardship deduction	0 *	0 *	Saving	Net wage paycheck	1197	1197
Other GDL deductions	0	0	Releases			
Child care expenses	0	0	Released to Mother			

Mother pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor	Pres CS	Payor
All children	100 - 0	0	0	0	Father	229	Mother	229	Mother
	100 - 0	0	0	0	Father	229	Mother	229	Mother